



POLICE DEPARTMENT

September 27, 2023

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202202357 (Incident Date: March 30, 2022) regarding Police Officer Crisbel Lopez, Tax No. 969177 (DADS No. 2023-28688), and Police Officer Steven Sanchez, Tax No. 963742 (DADS NO. 2023-28690)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with this CCRB case, pertaining to Police Officer Crisbel Lopez and Police Officer Steven Sanchez. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officers Lopez and Sanchez would be detrimental to the Police Department's disciplinary process. Instead, the Police Commissioner intends to retain jurisdiction over this matter and issue no disciplinary action against Police Officer Lopez and a Schedule "B" Command Discipline to Police Officer Sanchez.

Here, CCRB substantiated various allegations, including discourtesy, offensive language, and interfering with the right to record against these two police officers.

CCRB recommended that Police Officers Lopez and Sanchez be served with Charges and Specifications. The Police Commissioner has reviewed all available evidence, including cellphone footage, furnished by CCRB and determined that Police Officer Lopez's actions did not constitute misconduct. Furthermore, Police Officer Sanchez's misconduct does not rise to the level where the issuance of Charges and Specifications is appropriate.

In this matter, Police Officer Crisbel Lopez and her partner were assigned to a foot post in an area that had recently been plagued by gun violence. An individual began filming and simultaneously harassing the two officers while they were inside a store. As the officers were leaving the store, trying to avoid the confrontational individual, his friend provoked the situation by stating that Officer Lopez had made an offensive remark; the individual, however, never heard the officer's remark. The person who heard the statement was neither identified nor interviewed. There is no credible evidence that Officer Lopez made an

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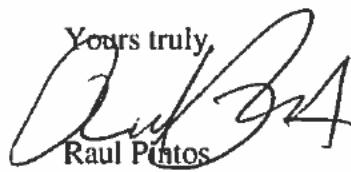
offensive statement. In fact, at the moment, she unequivocally denied making the statements. Therefore, Police Officer Lopez should receive no disciplinary action regarding the unsupported allegation, as there is no credible evidence that she used offensive language toward the individual.

As Police Officer Lopez was walking away from the individual following her, she reached out and made a motion with her arm aimed at backing the individual away from her. The arm motion was necessary to create a zone of safety since the individual was closely following Officer Lopez and he had been badgering her just moments earlier. Police Officer Lopez rightfully feared for her safety and appropriately used an arm motion to create a safe distance between herself and the individual. It is of no consequence that in the process of creating a zone of safety, Officer Lopez came in contact with individual's cell phone. The interaction was captured by the individual's cellphone and the store's surveillance camera and showed Officer Lopez was not interfering with the individual's recording. Thus, Police Officer Lopez should receive no disciplinary action for utilizing police tactics to create a safe zone for herself.

The cellphone footage also shows Police Officer Lopez telling the individual to "shut up." Police Officer Lopez uttered this phrase as she walked away from the individual, who was closely following and verbally harassing her. Therefore, given the totality of the circumstances, Police Officer Lopez should receive no disciplinary action as her statement to the individual did not rise to the level of discourtesy.

Subsequently, the individual continued antagonizing Police Officer Lopez and her partners, including Police Officer Sanchez. The individual created a hazard for the officers when he shined a bright light inside the police vehicle, limiting their ability to maintain tactical situational awareness of their surroundings. The individual's actions caused Police Officer Sanchez to exit his police vehicle and engage with the individual.

The interaction between Police Officer Sanchez and the complainant was captured by the individual's cellphone. The recorded footage shows the individual shining the flashlight on each officer's shield. Officer Sanchez had just finished utilizing the radio when the complainant approached him in a hostile manner with the camera in hand. The video shows Officer Sanchez swiping the phone away as he states in sum and substance that he needs his personal space. Additionally, contemporaneously Officer Sanchez said, "Bro, get that shit off my hand" directed at the individual. Therefore, in light of the problematic situation and the totality of the circumstances, the Police Commissioner intends to impose and issue a Schedule "B" Command Discipline for both discourtesy and interfering with a recording device to Officer Sanchez. This mitigated penalty is appropriate and falls within the parameters established by the Department's Disciplinary System Penalty Guidelines.

Yours truly,

Raul Pintos
Chief of Staff
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

October 2, 2023

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202202357 Police Officer Crisbel Lopez, Tax No. 969177 (DADS No. 2023-28688) and Police Officer Steven Sanchez Tax No. 963742 (DADS NO. 2023-28690)

Commissioner Caban:

I am writing in response to the letter from Chief Raul Pintos, dated September 27, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to retain jurisdiction over this matter and issue no disciplinary action against Police Officer Lopez and a Schedule “B” Command Discipline to Police Officer Sanchez. Pursuant to Paragraphs 2 and 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Chief Pintos’ notification.

Chief Pintos stated that the Police Commissioner reviewed the entirety of this matter, including cellphone footage, furnished by CCRB, and determined that Police Officer Lopez's actions did not constitute misconduct.

Chief Pintos also stated the Police Commissioner finds that Police Officer Sanchez's misconduct does not rise to the level justifying the issuance of Charges and Specifications.

In regard to Officer Lopez, the letter states that the allegations are not supported but the CCRB respectfully disagrees. In viewing BWC footage for this incident, at 2:57, PO Lopez is facing away from the camera, passing through the bodega doorway, and a female voice is faintly heard saying, “bum ass.” As PO Lopez and PO Rodriguez exit the bodega, § 87(2)(b) is heard telling the officers that the bodega is not their post, and PO Lopez tells § 87(2)(b) to “shut up.”

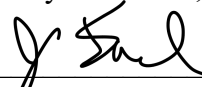
Subsequently, § 87(2)(b) approached Officer Sanchez shining a flashlight that, albeit a nuisance, did not pose a threat to any officer. Police Officer Sanchez’s remark, “bro get that shit out of my face” was discourteous and did not serve a legitimate purpose. Under the Patrol Guide, there are certain instances where members of the NYPD can use such language and this incident

does not fall into any of those circumstances. Additionally, Officer Sanchez swats the phone out of § 87(2)(b) hand directly violating the patrol guide and § 87(2)(b) right to record. Furthermore, the fact that § 87(2)(b) was able to successfully record the incident does not mean that Officer Sanchez did not interfere with the recording.

It is undisputed that throughout this time § 87(2)(b) was recording the officers and shouting, however, that does not justify the officer's actions. The NYPD is mandated to accomplish its mission by treating citizens with compassion, courtesy, professionalism, and respect; officers pledge to value human life, respect the dignity of each individual and render services with courtesy and civility pursuant to Patrol Guide § 200-02. It was Officer Lopez's duty to rise above and remain professional. Furthermore, although § 87(2)(b) was following the officers, he did not threaten nor pose an imminent threat to Officer Lopez or Officer Sanchez in this situation.

As the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, the Police Commissioner's decision is not reasonable under the circumstances. CCRB would request that the Charges and Specifications against both officers be served and not dismissed.

Respectfully submitted,



Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

October 5, 2023

Re: CCRB Case No. 202202357 (Incident Date: March 30, 2022) regarding Police Officer Crisbel Lopez, Tax No. 969177 (DADS No. 2023-28688), and Police Officer Steven Sanchez, Tax No. 963742 (DADS NO. 2023-28690)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated October 2, 2023, regarding the CCRB cases involving Police Officer Crisbel Lopez and Police Officer Steven Sanchez, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Lopez and Sanchez, for the reasons expressed in my September 27, 2023 letter.

In order to accommodate the Statute of Limitations, Police Officer Sanchez was issued a Schedule "B" Command Discipline and Police Officer Lopez received no disciplinary action for the allegations of discourtesy and interfering with a recording device, respectively, in accordance with the Police Commissioner's direction.

Yours truly,

Raul Pintos
Chief of Staff
Police Commissioner's Office